

Multiple Choice (10 marks)

1. Judge took judicial notice of some facts at the beginning of the trial. Which of the following is not an appropriate kind of fact for judicial notice?
 - (a) Indisputable facts.
 - (b) Facts that have been asserted by individual political organizations.
 - (c) Facts recognized to be true by common knowledge.
 - (d) Facts capable of scientific verification.
2. Seller has a contract that specifies a delivery point. What kind of a contract is this?
 - (a) F.A.S. Contract
 - (b) Destination contract
 - (c) Shipment contract
 - (d) F.O.B. Contract
3. In order to have an irrevocable offer under the Uniform Commercial Code, the offer must
 - (a) Be made by a merchant to a merchant.
 - (b) Be contained in a signed writing which gives assurance that the offer will be held open.
 - (c) State the period of time for which it is irrevocable.
 - (d) Not be contained in a form supplied by the offeror.
4. If a regulation does amount to a taking, then what must the government do?
 - (a) Pay just compensation for the property
 - (b) Terminate the regulation and pay damages that occurred while regulation was in effect
 - (c) Pay double damages if not addressed in 30 days.
 - (d) a or b
5. Which is the hierarchy of U.S. Law?
 - (a) Executive agreements, U.S. Constitution, treaties and federal statutes, state law
 - (b) U.S constitution, treaties and federal statutes, executive agreements, state law
 - (c) Treaties and federal statutes, US Constitution, executive agreements, state law
 - (d) U.S constitution, executive agreements, treaties and federal statutes, state law

True / False (10 marks)

Answer True or False

6. True or False: Nominal damages are intended to provide substantial compensation to the nonbreaching party for lost profits from the breach.
7. True or False: The name 'FBI Consultants, Incorporated' would be an appropriate choice for a private corporation in this context.
8. True or False: The Rule in Shelley's Case allows a remainder in the grantor's heirs to remain valid, preventing reversion to the grantor.
9. True or False: For a contract to be discharged due to frustration of purpose, the event causing frustration must be unforeseeable at the time of contract formation.
10. True or False: A law that is discriminatory on its face does not require evidence of intent to establish a discriminatory classification.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the implications of the President's power to appoint various officials with the advice and consent of the Senate, analyzing how this process affects the balance of power in the federal government.
12. Discuss the legal principles surrounding slander, including the requirements for a statement to be considered slanderous, and evaluate the implications of the assertion that publication is not necessary for slander per se.

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